

HOUSE No. 3591

The Commonwealth of Massachusetts

PRESENTED BY:

James K. Hawkins

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act ensuring our freedom to read in the Commonwealth.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>1/16/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>3/24/2025</i>
<i>Danillo A. Sena</i>	<i>37th Middlesex</i>	<i>3/24/2025</i>
<i>Patrick M. O'Connor</i>	<i>First Plymouth and Norfolk</i>	<i>4/2/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>4/7/2025</i>
<i>Samantha Montaño</i>	<i>15th Suffolk</i>	<i>4/30/2025</i>
<i>John Barrett, III</i>	<i>1st Berkshire</i>	<i>7/5/2025</i>
<i>Meghan K. Kilcoyne</i>	<i>12th Worcester</i>	<i>7/5/2025</i>
<i>Marjorie C. Decker</i>	<i>25th Middlesex</i>	<i>7/5/2025</i>
<i>Leigh Davis</i>	<i>3rd Berkshire</i>	<i>7/17/2025</i>
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>7/17/2025</i>
<i>Carmine Lawrence Gentile</i>	<i>13th Middlesex</i>	<i>9/18/2025</i>

HOUSE No. 3591

By Representative Hawkins of Attleboro, a petition (accompanied by bill, House, No. 3591) of James K. Hawkins for legislation to encourage the improvement of free libraries and library systems. Tourism, Arts and Cultural Development.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 4005 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act ensuring our freedom to read in the Commonwealth.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Because the state has a financial responsibility in promoting public education, and
2 because the public library is a vital agency serving all levels of the educational process, it is
3 hereby declared to be the policy of the Commonwealth of Massachusetts to encourage the
4 improvement of free public libraries and all public library systems, to facilitate cooperation
5 among all types of libraries in promoting the sharing of public library resources, including digital
6 resources.

7 It is further declared to be the policy of the Commonwealth of Massachusetts to
8 encourage and protect the freedom of public libraries and public library systems to acquire
9 materials without external limitations and to be protected against attempts to ban, remove, or
10 otherwise restrict access to books or other materials.

11 The Massachusetts Board of Library Commissioners shall administer the provisions of
12 this Act and shall prescribe such rules and regulations as are necessary to carry the provisions of
13 this Act into effect.

14 The rules and regulations established by the Massachusetts Board of Library
15 Commissioners for the administration of this Act shall be designed to achieve the following
16 standards and objectives:

17 A. Provide public library service for every person in the commonwealth by extending
18 public library facilities to areas not now served.

19 B. Provide library materials for student needs at every educational level.

20 C. Provide adequate library materials to satisfy the reference and research needs of all
21 people of this Commonwealth.

22 D. Provide an adequate staff of professionally trained librarians for the Commonwealth.

23 E. Adopt the American Library Association's Library Bill of Rights that indicates
24 materials should not be proscribed or removed because of partisan or doctrinal disapproval or, in
25 the alternative, develop a written statement declaring the inherent authority of the public library
26 or public library system to provide an adequate collection stock of books and other materials
27 sufficient in size and varied in kind and subject matter to satisfy the library needs and interests of
28 all people of this Commonwealth and prohibit the practice of banning specific books or
29 resources.

30 F. Provide adequate public library outlets and facilities that are convenient in time and
31 place to serve the people of this Commonwealth.

32 G. Encourage existing and new public libraries to develop library systems serving a
33 sufficiently large population to support adequate library service at a reasonable cost.

34 H. Foster the economic and efficient utilization of public funds to improve public
35 libraries and library systems in the Commonwealth.

36 The Massachusetts State Advisory Council on Libraries (SACL) shall confer with,
37 advise, and make recommendations to the Massachusetts Board of Library Commissioners
38 regarding any matter under this Act, particularly regarding the formation of public library
39 systems.

40 This Act shall take effect upon passage.